

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

October 26, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Case, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #10 was removed from the Consent Agenda. Mr. Brown moved to approve the remaining Consent Agenda items, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON OCTOBER 12, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON OCTOBER 19, 2009. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Mr. Valdez declared a conflict of interest (business interest) due to a voucher payable to KYOY Radio Station (\$250.00) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

"AN ORDINANCE AMENDING SECTION 12.04.010 OBSTRUCTION ON STREETS, AND SECTION 12.04.080, CONSTRUCTION AND REPAIR-PERMITS REQUIRED-FEES-EXCEPTION, OF CHAPTER 12.04, STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." Edward Melko questioned the permit requirement involved with the ordinance; expressed concerns with materials for disposal due to home repair projects (ex: roofing); contractor costs passed on to customers; length of permit time and potential construction or inclement weather delays affecting the time frame, and requested further clarification of ordinance requirements. Frank Cole spoke in opposition to the ordinance, stating wording of the ordinance is confusing as written. He questioned whether a permit would be required relative to new subdivision construction, the difference between streets and sidewalks and public rights-of-way, and whether driveways were

considered a public street. Upon inquiry, Nathan Beauheim, City Engineer's office, provided information on the proposed permit and when it would be required; clarified if a street in a new subdivision is not yet constructed, the right-of-way permit would not be required at the time original infrastructure is being placed, and explained the difference between a right-of-way encroachment permit vs. the new permit involving obstructions. City Attorney Dan White further clarified that under existing provisions of City Code Section 12.04.010 it is unlawful, except as otherwise provided by code or other city ordinance, to erect, maintain or in any way cause an obstruction of any character in or upon any street, alley, or sidewalk, and stated the permitting process is a way to legally allow people to store something on a street, alley or sidewalk for a period of time while a job is being completed. Doug Vetter, City Engineer, provided distinction between a right-of-way encroachment permit stating the permit is intended primarily for construction purposes and provides for inspection and compliance of those facilities, whether it is an existing facility or brand new, and the proposed new permit affiliated with the ordinance which would be for storing items in the right-of-way and does not include a street that is not built yet. Upon inquiry, Mr. Beauheim provided a brief history on construction and encroachment permits that had been combined into the engineering encroachment permit to alleviate a number of different permits having to be issued. Reporting for Finance Committee, Mr. Valdez moved to approve on third and final reading, seconded by Ms. Broyles. Mr. Valdez moved to amend by substitute #2, seconded by Ms. Broyles. City Attorney Dan White clarified the substitute provides for the following amendments: The word "*property*" is inserted into Section 12.04.010(H)(line 4) after the word "personal", subsection B(1) in Section 12.04.080 has been eliminated, and an ordinance effective date has been inserted in Section 3 following the word "publication" by adding " ... *but not sooner than January 1, 2010*". Comments followed on the time frame that would be allowed under a permit for storing containers in the right-of-way, and clarification of the size of allowable containers. Motion to amend failed. Voting "no" – all members of the governing body. Discussion followed on whether temporary storage of landscaping materials in front of a residence could occur without having to obtain a permit, and wording of current City Code prohibiting obstructions as reviewed earlier in discussion by Mr. White. Mr. Pierson moved to postpone for two weeks (to Nov. 9, 2009) to further review ordinance wording to address storage of temporary landscaping materials, seconded by Mr. Valdez. Mr. Melko spoke in support of postponement and requested consideration be given to allow storage of siding and roofing materials for construction jobs. Comments followed on the intent of the ordinance, which is to address storage of materials and containers in public rights-of-way; potential cumbersome permit process affecting residents; dedicated streets that are not yet built; protecting the usage of public rights-of-way for pedestrians, bicyclists, drivers, etc., and when a permit and fee may not be required. Motion to postpone carried. Voting "yes" – all members of the governing body. Mayor Kaysen advised the ordinance will be reviewed at the next Finance Committee meeting to be held on Monday, Nov. 2, 2009 at 11:00 a.m. in Room 122 of the Municipal Building.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED, AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM P PUBLIC DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR LOT 2, BLOCK ONE, WINDMILL ROAD, SECOND FILING, (A PORTION OF THE NE1/4 OF SECTION 28, T.14N., R.66W., 6TH P.M.) CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF DELL RANGE BOULEVARD AND WINDMILL ROAD)." Frank Cole spoke in opposition to the zone change as it encompasses park property and a portion of the Greenway path. He distributed photos of the area (on file with the City Clerk's office) and expressed concerns with parking lot areas, realignment of the Greenway, trees in the area and moving forward with the

ordinance without knowing what is planned for future use of the property. Ed Melko also spoke in opposition to the ordinance, and questioned the zone change moving forward before the final plat had been approved. Reporting for Public Services Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Upon inquiry concerning whether an RFP (request for proposal) process would be followed in conjunction with potential transfer of ownership of the property, Matt Ashby, Planning Services Director, stated a RFP process would be one of several options available to the governing body regarding procedures that may involve potential sale of the property. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Broyles, Ms. Case and Dr. Rinne voting “no”.

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR WINDMILL ROAD, SECOND FILING, A PORTION OF THE NE1/4 OF SECTION 28, T.14N., R.66W., 6th P.M., CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF DELL RANGE BOULEVARD AND WINDMILL ROAD).” Ed Melko commented on use restrictions imposed on the property and cautioned the governing body that unintended consequences may result if future use of the property is not in compliance with restrictions. Frank Cole requested consideration of his comments made during the previous agenda item involving re-zoning of the property; referenced the photos he had distributed during discussion on the zoning ordinance with regard to trees in the area and truck access issues, and commented that a RFP process could be problematic. Mr. Brown moved to adopt, seconded by Mr. Collins. Brief comment followed that the re-plat involves dividing the property into lots. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case voting “no”. (#5167)

[CA] “A RESOLUTION APPROVING AMENDMENTS TO CLEAN WATER SRF LOAN NO. 092 BETWEEN THE STATE OF WYOMING AND THE CITY OF CHEYENNE, WYOMING FOR AN INCREASE IN THE AMOUNT OF PRINCIPAL FORGIVENESS LOAN FUNDING OF \$1,131,216.43 FOR THE CROW CREEK ANOXIC BASIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS. (STATE LOAN & INVESTMENT BOARD AND AMERICAN RECOVERY & REINVESTMENT ACT)” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A RESOLUTION APPROVING SUBMISSION OF A 2009 COUNTYWIDE CONSENSUS BLOCK GRANT APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION SUPPORTING THE U.S. CENSUS 2010 AND THE CREATION OF A “COMPLETE COUNT COMMITTEE” -- referred to Public Services Committee (sponsor - Ms. Broyles).

[CA] “A RESOLUTION TO ADOPT THE CERTIFICATE AND DECLARATION OF THE CANVASSING BOARD RESULTS OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTION HELD OCTOBER 20, 2009” -- referred to Finance Committee (sponsor - Mr. Spiker).

LEASES/CONTRACTS/LEGAL:

[CA] Grant Award Agreement between the City of Cheyenne, Police Department, and Wyoming Office of Homeland Security, for Law Enforcement Terrorism Prevention Activities. Motion (per Consent Agenda) carried (grant award in the amount of \$75,797.82). (#5475)

[CA] Juvenile Accountability Block Grant Contract between the State of Wyoming, Department of Family Services, Division of Juvenile Services and the City of Cheyenne for partial funding of Municipal Juvenile Court staffing and pretrial services (Juvenile Accountability Block Grant) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and WINhealth partners for City employee health coverage -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program and the State of Wyoming, Division of Victim Services for ARRA VOCA funding for Fiscal Year 2010 (American Recovery & Reinvestment Act) -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 5 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation for reduction of retainage for the Norris Viaduct Project (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax; SLIB; TEAL; and BOPU Grants). Motion (per Consent Agenda) carried. (#5280)

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-7-10 for a contract between the City of Cheyenne and Desert Mountain Corporation, Riverton, WY, for furnishing 3000 tons of bulk ice control product, for the Public Works Department for use on City streets (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$331,170.00).

[CA] Consideration of Bid #M-9-10 for a contract between the City of Cheyenne and Recco, Inc. D/b/a Five-R Co., for construction of the addition to the Transfer Station Project (State Loan & Investment Board). Motion (per Consent Agenda) carried (amount not to exceed \$892,000.00). (#5477)

APPOINTMENTS:

Appointment of Kadi Davis, Joshua Herr, Taylar Perez, Katherine Poffenbarger, Kelsey James, Karolyn Hopfensperger, Dean Jackson, Alissa Aylward, Blake Soule, Samantha Heitsch, Gary Saylor, Mashayla Still and Ashley Ortiz to the Mayor's Youth Council. Mr. Collins moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

There being no further business to come before the governing body, the meeting was officially adjourned at 6:56 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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